

Amendment No. 1 to SB0988

Briggs
Signature of Sponsor

AMEND Senate Bill No. 988

House Bill No. 375*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 5, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) Each department, agency, or official of a county who assesses and collects a fee related to development in excess of two hundred fifty dollars (\$250) shall maintain documentation describing the justification and cost basis for such fee.

(b) The documentation maintained under subsection (a) is:

(1) A public record and available for public inspection upon request pursuant to title 10, chapter 7, part 5; and

(2) Subject to an annual audit by the comptroller of the treasury. The comptroller may incorporate the annual audit into any other financial audit of the county performed by the comptroller of the treasury.

(c) As used in this section, "development" means the construction, building, erection, or improvement to land or any infrastructure contributing to the ability to provide a new building or structure.

SECTION 2. Tennessee Code Annotated, Title 6, Chapter 54, Part 1, is amended by adding the following as a new section:

(a) Each department, agency, or official of a municipal government who assesses and collects a fee related to development in excess of two hundred fifty dollars (\$250) shall maintain documentation describing the justification and cost basis for such fee.

(b) The documentation maintained under subsection (a) is:

(1) A public record and available for public inspection upon request pursuant to title 10, chapter 7, part 5; and

(2) Subject to an annual audit by the comptroller of the treasury. The comptroller may incorporate the annual audit into any other financial audit of the municipal government performed by the comptroller of the treasury.

(c) As used in this section, "development" means the construction, building, erection, or improvement to land or any infrastructure contributing to the ability to provide a new building or structure.

SECTION 3. Tennessee Code Annotated, Title 7, Chapter 1, is amended by adding the following as a new section:

(a) Each department, agency, or official of a metropolitan government who assesses and collects a fee related to development in excess of two hundred fifty dollars (\$250) shall maintain documentation describing the justification and cost basis for such fee.

(b) The documentation maintained under subsection (a) is:

(1) A public record and available for public inspection upon request pursuant to title 10, chapter 7, part 5; and

(2) Subject to an annual audit by the comptroller of the treasury. The comptroller may incorporate the annual audit into any other financial audit of the metropolitan government performed by the comptroller of the treasury.

(c) As used in this section, "development" means the construction, building, erection, or improvement to land or any infrastructure contributing to the ability to provide a new building or structure.

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it.